

The party seeking enforcement of an electronically signed contract may sufficiently authenticate the agreement by producing evidence explaining that the signor had a unique username and password and providing the step-by-step process necessary for signing, as well as affirming that the signature could only have been placed on the document by the employees. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal. App. 4th 1047, 1060.) “A proponent seeking to authenticate an electronic signature must show the electronic signature ‘was the act of the person,’ which could be shown ‘in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.’” (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal. App. 5th 41, 53.) “[T]he burden of authenticating an electronic signature is not great.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 844.)

Here, the defendant relies on the declaration of its Senior HR Manager, Ms. Galindo-Castro. She represents that on October 30, 2020, Plaintiff executed the Arbitration Agreement which was in his personnel file. (Decl. of Galindo-Castro, ¶ 7.) The Arbitration Agreement is not actually signed, although there is a separate document attached indicating that ADP verifies the electronic signature. (Id, Ex. A.) That evidence is insufficient to show that the alleged electronic signature was the act of Plaintiff. Ms. Galindo-Castro states only that personnel documents are generally provided to employees with time to review and execute them, which are then placed in the employee’s personnel file. This is insufficient to establish the veracity of the electronic signature. There is no evidence showing that only Plaintiff could have electronically signed the Arbitration Agreement based on a unique user name and password. There is no evidence that anyone observed Plaintiff signing the Agreement. Nor is there any evidence from ADP as to the method by which the plaintiff’s signature was “verified.” Because Defendant has not established that the Arbitration Agreement was executed by Plaintiff, it has not established the existence of a valid arbitration agreement. Therefore, the motion fails.

Because the motion fails, the Court need not consider whether the defendant waived arbitration or whether the agreement is unconscionable.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503782	ITRIA VENTURES LLC vs MAINVIEW MULTINATIONAL LLC	MOTION TO SET ASIDE

Tentative Ruling:

The motion of Mainview Multinational, LLC, to set aside the default entered against it is denied.

Analysis:

The motion is brought in reliance upon CCP section 473.5. Subdivision (b) of that section requires the defendant's motion to be accompanied by the "answer, motion, or other pleading proposed to be filed." The moving defendant failed to file such a pleading with its motion for relief.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600311	WU vs J&J REAL ESTATE INVESTMENT FUND LLC	ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling:

The defendant's request for judicial notice is denied. The defendant's anti-SLAPP motion is denied.

Analysis:

The documents of which judicial notice is requested are irrelevant to the Court's analysis. For that reason, the request is denied.

The Court may decline to hear any anti-SLAPP motion that is filed more than 60 days after service of the complaint on the moving defendant. (CCP section 425.16, subd. (f).) Here, the motion was not filed until 52 days after the statutory deadline.

The defendant did not even address the issue of timeliness in its motion. It belatedly raised the issue in its reply, but even then did not explain why the Court should exercise its discretion to hear a late motion under the instant factual and procedural circumstances. It did not, for example, explain why the motion could not in the exercise of reasonable diligence have been filed sooner than 52 days after the deadline had passed.

The Court declines to hear the untimely motion.